LICENSE AGREEMENT

This license is entered into between the **Delhi Transport Stack** and the Data Consumers. The data services and information are available at https://delhi.transportstack.in

1. PROVISION OF DATA

1.1 All Intellectual Property / Copyright in Data are and shall remain the property of the Data Provider and its licensor.

1.2 The Data Provider will provide the Data in accordance with the terms and conditions of the Agreement and grants the Data Consumer a non-exclusive, non-transferable, license to use the Data subject to:

1.2.1 payment of the appropriate License Fee (if applicable);

1.2.2 the data shall be used for the permitted / intended purpose, set out in Schedule 1 **('Licensed Rights')**

1.3 All other rights are reserved by the Data Provider. Any copying, storage, transmission, publication, re-distribution, or use, other than as set out in this Agreement is not permitted.

2. DEFINITIONS

In these terms and conditions, the following meanings shall apply:

Word or Phrase	**Meaning**
Agreement	means this agreement, together with the Schedules and any policies incorporated for reference;
Attribution Statement	means a standard notice to be published by all data consumers that contains the details of the data source
Catalogue	the description of data sets content displayed on the Transport Stack Marketplace;
Content	the content owned by the Data Provider and made available for sharing under license through the Transport Stack Web Portal;
Data	means a representation of information published on Transport Stack
Data Publisher or Licensor	means the Transport Stack
Data Provider(s)	are various entities providing data to the Transport Stack such as public transit operator (both Government and private), transport aggregators,

	and other agencies generating and providing public transit related data to the Transport Stack
Data Consumer	means person or entity using data from Transport Stack
License Fees	the charges, if any, for use of the data
License	means this document
Personal Data	means any information which is related to an identified or identifiable natural person

3. OBLIGATIONS

3.1 The Data Consumer agrees to always maintain the integrity of the Data and will implement reasonable technical and organizational measures to protect the Data against accidental or unlawful loss, alteration, corruption, disclosure, or access.

3.2 The Data Consumer agrees to comply with the terms and conditions of this Agreement and any reasonable instructions which the Data Publisher may from time to time notify it in writing in connection with the Data Consumer's use of the Data.

3.3 As a condition of the Data Consumer's exercise of the Licensed Rights, the Data Consumer must provide:

3.3.1 **Attribution:** Provide an appropriate acknowledgement for the source of licensed data by explicitly publishing the attribution statement. Where the Licensed Rights so permit, ensure that any onward distribution of the Data is accompanied by appropriate notices relating to accuracy of the Data together with any relevant limitation or exclusion of liability provisions that the Data Publisher requires as a condition of such onward distribution; and

3.3.2 **Notification:** promptly notify the Data Publisher in writing of any defects, inaccuracies, or other deficiencies in the Data upon becoming aware of same.

3.4 The Data Consumer is responsible for the provision of the network connectivity services and server storage equipment to enable the Data access and receive the Data. The Data Publisher will not be responsible for any interruption, delay to access the Data due to any faults with the Data Consumer's network provider services or equipment.

3.5 Where the Licensed Rights permit the Data Consumer to distribute or otherwise make the output available to third parties, the Data Consumer shall use reasonable efforts not to do so in a manner that would or is likely to cause the output to be inaccurate, incomplete, or otherwise fails to comply with the terms of this Agreement.

4. LICENSE FEES

4.1. The Data Provider shall charge the Data Consumer the License Fee (where applicable) for the access and use of the Licensed Data basis the fee published on Transport Stack Web Portal

4.2. The Data Consumer must pay the License Fees due, and the Data Publisher will collect the agreed License Fees in the manner set out in the agreement. If the Data Consumer does not pay the agreed License Fees, the Data Publisher may suspend the data access until payment in full is made.

4.3. All License Fees are quoted exclusive of any applicable tax which shall be payable by the Data Consumer in addition.

5. TERMINATION

5.1 The Data Services are available to Data consumers perpetually unless period of the availability is exclusively mentioned and accepted by the Data Consumer. The Agreement shall commence and continue for the defined Term unless terminated earlier in accordance with the following provisions:

a. the Data Consumer breaches any provision of this Agreement (including without limitation the obligation to pay the License Fees if applicable) and fails to remedy that breach within seven days upon notice from the Data Publisher.

b. the Data Publisher loses any rights to sub-license any aspect of the Data or loses its rights to publish, usage, value addition, distribution through the Delhi Transport Stack Web Portal;

c. the Data Publisher suffers a force majeure event as set out in this license.

d. On at least **one month** notice where the Data Provider has taken the decision that it will no longer distribute or make available data under this license

e. Without prejudice to its rights under Clause 5.1, in consultation with competent Authority, the Data Publisher may limit or suspend access to the Data where the Data contains data pertaining to critical national infrastructure or on direction from law enforcement agencies.

5.2 The Data Consumer can terminate the Agreement under the below conditions:

a. the Data Publisher breaches any provision of this Agreement and fails to remedy that breach within **seven days** upon notice from the Data Consumer

b. the Licensed Data is palpably amended or replaced by the Data Publisher or Data Provider (as applicable)

5.3 Termination or expiry of this Agreement shall not affect any rights, remedies, obligations, or liabilities, the parties have accrued up to the date of termination or

expiry.

6. LIABILITY

6.1 The Data Publisher excludes all liability for loss of business revenue or profits, anticipated savings or wasted expenditure, corruption, or destruction of data and for any indirect and/or consequential loss whatever arising out of or in connection with this Agreement.

6.2 In the event of any matter falling with this Clause where a third-party claim is made or threatened against the Data Consumer or the Data Publisher, the parties shall provide all reasonable assistance to each other in connection with any such action.

7. WARRANTIES

7.1 The Data Provider warrants and undertakes to the Data Consumer:

a. it has the right to grant the Licensed Rights.

b. it has used reasonable skill and means in the creation and supply of the Data;

c. Shall use reasonable endeavors to describe its data quality fairly; and

d. as far as it is aware, the Data does not contain Personal Data.

7.2 the Licensed Data is provided on an 'as is' basis. Notwithstanding anything contained in this Agreement, the Data Publisher makes no representations as to the accuracy or fitness for purpose of the Data and all warranties, conditions, or other terms implied by statute, common law or otherwise are excluded to the fullest extent permitted by law. Be that as it may and without any liability to the Data Consumer, the Data Publisher may indicate in good faith what it believes to be the level of accuracy of the Data

7.3 The Data Consumer must contact the Data Publisher immediately if anyone claims against the Data Consumer relating to the Data Consumer's use of the Data and the Data Consumer will comply with any reasonable request from the Data Publisher in relation to such claim.

8. GENERAL

8.1 It is the Data Publisher that enables the Data Consumer to access the Data. The Data Publisher cannot guarantee that the Delhi Transport Stack Web Portal will never be faulty or that it will be always available, for example, need to temporarily suspend the whole or any part, of the Transport Stack for any technical and logistic reasons. Data Consumer need to periodically see Transport Stack Notices, terms of use as well as policies for more information on platform performance and availability.

8.2 The Data Consumer is not allowed to transfer or attempt to transfer this Agreement in whole or in part.

8.3 The Data Publisher shall not be liable if the Data Publisher cannot perform its

obligations under this Agreement because of circumstances beyond its reasonable control such as technical failure, adverse weather conditions, act of GOD, Accidents, civil disorder /war, national or local emergency, anything done by government or other competent authority or industrial disputes of any kind.

8.4 Notices given under the Agreement may be given by the Data Publisher to the Data Consumer online through the Delhi Transport Stack (Email) or in writing to the address as currently stated in the Data Consumer's Registration details and by the Data Consumer to the Data Publisher through Help & Support Section

8.5 This Agreement is the entire and only agreement between the parties concerning its subject matter and supersedes all prior agreements, arrangements, and understandings (whether written or oral) relating thereto. Neither party has relied upon any statement, representation, or warranty of any person other than as expressly set out in this Agreement.

8.6 If either party delays in acting upon a breach of this Agreement by the other party, that delay shall not be regarded as a waiver of the breach. If a party does expressly waive a breach of this Agreement by the other party, that waiver is limited to that breach.

8.7 Governing Law: This License Agreement is governed by Indian Laws and subject to the exclusive jurisdiction of courts in Delhi.

8.8 Dispute Resolution Mechanism: Any difference of opinion or dispute arising out of this License may be referred to the sole arbitrator appointed by the Data Publisher

8.9 Exemptions**:** The License does not cover the personal information, names, logos and other official symbols and data subject to other IP rights, including patents, trademarks etc.

SCHEDULE 1

LICENSED RIGHTS

1. **PERMITTED RECIPIENTS**
   All registered users

2. **PERMITTED PURPOSES**
   - **5.1. Redistribution**
     - Redistribution of the licensed work, including sale on its own is not allowed but is allowed as part of a collection made from works from different sources
   - **5.2. Modification**
     - Creation of derivatives of the licensed work is allowed
   - **5.3. Separation**
     - Any part of the work can be freely used
     - Any part of the work can be freely distributed
     - Any part of the work can be freely modified
     - All parties who receive any distribution of any part of a work within the terms of the original license should have the same rights as those that are granted in conjunction with the original work
   - **5.4. Compilation**
     - The licensed work can be distributed along with other distinct work without placing restrictions on other works

3. **TERMINATION**
   - The term shall be Perpetual
   - The notice period for Data Consumer termination shall be 1 Month

4. **TERRITORIAL RESTRICTIONS/ PROHIBITED COUNTRIES:**
   N/A

5. **ATTRIBUTION**
   Attribution to Transport Stack should be provided for any App / use-case developed using data/ API offered by Delhi Transport Stack

6. **NON-DISCRIMINATION**
   The license does not discriminate against anyone

7. **PROPAGATION**
   The rights attached to the work apply to all to whom it is redistributed without the need to agree to any additional legal terms

8. **INTEGRITY**
   The license requires that modified versions of a licensed work carry a different name or version from the original work or otherwise indicate what changes have been made

9. **SPECIAL CONDITIONS**
   N/A